

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF GALITSKIY AND OTHERS v. RUSSIA

(Applications nos. 46933/18 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

9 February 2023

This judgment is final but it may be subject to editorial revision.



In the case of Galitskiy and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Darian Pavli*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 19 January 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the unlawful detention (deprivation of liberty). They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 5 § 1 OF THE CONVENTION

6. The applicants complained that the administrative escorting and arrest procedures and their ensuing detention had been in contravention of Article 5 § 1 of the Convention.

7. The Court has previously examined complaints brought by persons arrested and detained in similar circumstances in Russia. Having examined the applicable domestic regulations, the Court established that, under the Russian law, the escorting to a police station and ensuing detention there for the purpose of preparing an administrative arrest record would be permissible

only if such record could not be drawn up at the place where the alleged offence had been discovered. The law also required that such escorting and detention be an "exceptional case" and necessary for the prompt and proper examination of the alleged administrative case or to secure the enforcement of any penalty to be imposed (see, for example, *Navalnyy v. Russia* [GC], nos. 29580/12 and 4 others, § 71, 15 November 2018). The authorities' failure to comply with those requirements, in the Court's view, led to it finding a violation of Article 5 § 1 of the Convention (see, in particular, *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019).

8. Having examined all the material submitted to it and having dismissed the Government's objection of non-exhaustion in some of the applications (see *Smadikov v. Russia* (dec.), no. 10810/15, 31 January 2017), the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. The Court discerns nothing in the official records submitted for it to conclude that recourse to such procedures was justified, as required by the Russian law. It concludes that the national authorities failed to comply with applicable rules of domestic procedure and considers that the applicants' arrest and detention were not "in accordance with a procedure prescribed by law".

9. These complaints are therefore admissible and disclose a breach of Article 5 § 1 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see the appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Frumkin v. Russia*, no. 74568/12, 5 January 2016, concerning disproportionate measures taken by the authorities against organisers and participants of public assemblies; and *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences).

11. In view of the above findings, the Court considers that there is no need to deal separately with the applicants' remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings.

IV. REMAINING COMPLAINTS

12. In application no. 62592/19, the applicant also raised a complaint under Article 3 of the Convention.

13. The Court has examined the application and considers that, in the light of all the material in its possession and in so far as the matter complained of is within its competence, this complaint does not meet the admissibility criteria set out in Articles 34 and 35 of the Convention.

It follows that this part of the application must be rejected in accordance with Article 35 § 4 of the Convention.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Saidov v. Russia* [Committee], no. 31872/19, § 23, 26 July 2022), the Court considers it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the unlawful detention (deprivation of liberty) and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, *decides* that it is not necessary to examine separately the applicants' complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings, and *dismisses* the remainder of the application no. 62592/19 as inadmissible;

3. *Holds* that there has been a violation of Article 5 § 1 of the Convention concerning the unlawful detention (deprivation of liberty);

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 9 February 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Darian Pavli
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 5 § 1 of the Convention (unlawful detention (deprivation of liberty))

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	46933/18 26/09/2018	**Grigoriy Vadimovich GALITSKIY** 1999	Yatsenko Irina Aleksandrovna Moscow	12/06/2017, 3.30 p.m.	12/06/2017, 8 p.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017) , Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (*Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow City Court on 26/03/2018 (appeal decision); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Convicted under article 20.2 § 5 of CAO for participation on 12/06/2017 in Moscow in an anti-corruption manifestation/ administrative fine of RUB 20,000/ Moscow City Court on 26/03/2018 (appeal decision).	3,900
2.	46978/18 26/09/2018	**Stefan AVRAMOSKI** 1996	Yatsenko Irina Aleksandrovna Moscow	12/06/2017, 4.30 p.m.	13/06/2017, 1 a.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017) , Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (*Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow City Court on 26/03/2018 (appeal decision); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 5 of CAO for participation on 12/06/2017 in Moscow in anti-corruption manifestation/ administrative fine of RUB 20,000/ Moscow City Court on 26/03/2018 (appeal decision)	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	47540/18 30/09/2018	**Yekaterina Fedorovna MALKOVA** 1998	Yatsenko Irina Aleksandrovna Moscow	12/06/2017, 4 p.m.	12/06/2017, 11 p.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017) , Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow City Court on 30/03/2018 (appeal decision); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under Article 20.2 § 5 of CAO for participation on 12/06/2017 in Moscow in an anti-corruption manifestation/ administrative fine of RUB 15,000/ Moscow City Court on 30/03/2018 (appeal decision).	3,900
4.	48243/18 26/09/2018	**Mikhail Valeryevich LANIN** 1987	Zhdanov Ivan Yuryevich Vilnius	12/06/2017, 3.50 p.m.	12/06/2017, 9.30 p.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017) , Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019)	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow City Court on 26/03/2018 (appeal decision); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 5 of CAO for participation on 12/06/2017 in Moscow in an anti-corruption manifestation/ administrative fine of RUB 15,000/ Moscow City Court on 26/03/2018 (appeal decision).	3,900
5.	48404/18 04/10/2018	**Aleksandr Yuryevich SHEPELEV** 1978	Yatsenko Irina Aleksandrovna Moscow	12/06/2017, 4.50 p.m.	12/06/2017, 11.50 p.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017) , Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow City Court on 04/04/2018 (appeal decision);	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 5 of CAO for participation on 12/06/2017 in Moscow in anti-corruption manifestation/ administrative fine of RUB 15,000/ Moscow City Court on 04/04/2018 (appeal decision).	
6.	48702/18 04/10/2018	**Aleksandr Yevgenyevich KRAPIVIN** 1998	Yatsenko Irina Aleksandrovna Moscow	12/06/2017, 4.47 p.m.	12/06/2017, 10.40 p.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017) , Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of tribunal - Absence of a prosecutor from the proceedings (see *Karelin v. Russia*, no. 926/08, §§ 51-85, 20 September 2016); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 5 of CAO for participation on 12/06/2017 in Moscow in anti-corruption manifestation/ administrative fine of RUB 15,000/ Moscow City Court on 04/04/2018 (appeal decision).	3,900
7.	48824/18 04/10/2018	**Anton Vitalyevich LEBEDINSKIY** 1984	Yatsenko Irina Aleksandrovna Moscow	12/06/2017, 4.50 p.m.	12/06/2017, 10.40 p.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017) , Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow City Court on 05/04/2018 (appeal decision); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 5 of CAO for participation on 12/06/2017 in Moscow in anti-corruption manifestation/ administrative fine of RUB 10,000, Moscow City Court on 05/04/2018 (appeal decision).	3,900

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8.	49689/18 12/10/2018	**Oleg Sergeyevich KONDRATOV** 1992	Memorial Human Rights Centre Moscow	12/06/2017, 3 p.m.	13/06/2017, 2 a.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017) , Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (*see Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow City Court on 12/04/2018 (appeal decision); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 5 of CAO for participation on 12/06/2017 in Moscow in anti-corruption manifestation/ administrative fine of RUB 10,000/ Moscow City Court on 12/04/2018 (appeal decision).	3,900
9.	50589/18 16/10/2018	**Arseniy Aleksandrovich KHOROSHILOV** 1998	Yelanchik Oleg Aleksandrovich Moscow	12/06/2017, 4.50 p.m.	12/06/2017, 11.50 p.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017), Detention as an administrative suspect: no written record of the administrative arrest (Art. 27.4 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017)	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow City Court on 16/04/2018 (appeal decision); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 5 of CAO for participation on 12/06/2017 in Moscow in anti-corruption manifestation/ administrative fine of RUB 10,000/ Moscow City Court on 16/04/2018 (appeal decision).	3,900
10.	21594/19 09/04/2019	**Vladimir Mikhaylovich BARANOV** 1984	Mikhaylova Varvara Dmitriyevna St Petersburg	09/09/2018, 6.15 p.m.	10/09/2018, 10.46 a.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO)	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (see *Karelin v. Russia*, no. 926/08,	3,900

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						(see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018)	20 September 2016) - St Petersburg City Court on 11/10/2018 (appeal decision); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 6.1 of CAO for participation on 09/09/2018 in St Petersburg in manifestation against the pension reform/ 5 days of administrative detention/ St Petersburg City Court on 11/10/2018 (appeal decision).	
11.	22394/19 01/04/2019	**Eduard Anatolyevich LEONTYEV** 1987	Zhdanov Ivan Yuryevich Vilnius	09/09/2018 2.30 p.m.	09/09/2018 8.00 p.m.	Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017).	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - Lipetsk Regional Court on 25/10/2018 (appeal decision); Art. 11 (1) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 5 of CAO for participation on 09/09/2018 in Lipetsk in manifestation against the pension reform/ administrative fine of RUB 10,000/ Lipetsk Regional Court on 25/10/2018 (appeal decision).	3,900
12.	23934/19 24/04/2019	**Denis Dmitriyevich KOCHETOV** 1999	Shabanov Georgiy Borisovich Troitsa	09/09/2018 5.15 p.m.	11/09/2018 3.40 p.m.	Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (*see Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017).	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - Perm Regional Court on 25/10/2018 (appeal decision); Art. 11 (1) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 6 of CAO for participation on 09/09/2018 in Perm in manifestation against	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
							the pension reform/ 40 hours of compulsory labour/ Perm Regional Court on 25/10/2018 (appeal decision).	
13.	25401/19 20/04/2019	**Aleksandr Viktorovich KOZLOV** 1982	Mikhaylova Varvara Dmitriyevna St Petersburg	09/09/2018, 6.00 p.m.	10/09/2018, 1.33 p.m.	Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled (see *Korneyeva v. Russia*, no. 72051/17, § 35, 8 October 2019), Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017).	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - St Petersburg City Court on 01/11/2018 (appeal decision); Art. 11 (1) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 6 of CAO for participation on 09/09/2018 in St Petersburg in manifestation against the pension reform / 4 days of administrative detention/ St Petersburg City Court on 01/11/2018 (appeal decision).	3,900
14.	29182/19 06/05/2019	**Vyacheslav Nikolayevich SAMOKHODKIN** 1990	Belozerov Aleksey Sergeyevich St Petersburg	09/09/2018, 6.20 p.m.	10/09/2018, after 3 p.m.	Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018). Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017).	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - St Petersburg City Court on 08/11/2018 (appeal decision); Art. 11 (1) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 6 of CAO for participation on 09/09/2018 in St Petersburg in manifestation against the pension reform/ administrative fine of RUB 10,000/ St Petersburg City Court on 08/11/2018 (appeal decision).	3,900
15.	30252/19 08/05/2019	**Arina Mikhaylovna SMIRNOVA** 1990	Bogomolova Nina Aleksandrovna St Petersburg	09/09/2018, 5.50 p.m.	11/09/2018, 10 a.m.	Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 11 (1) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 6.1 of CAO for participation on 09/09/2018 in St Petersburg in	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						Detention as an administrative suspect: no evidence/assessment of "exceptional circumstances" under Art. 27.3 § 1 CAO (see *Butkevich v. Russia*, no. 5865/07, §§ 63-64, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018), Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017).	manifestation against pension reform/ 2 days of administrative detention/ St Petersburg City Court on 08/11/2018 (appeal decision).	
16.	62592/19 22/11/2019	**Vitaliy Viktorovich SHUBIN** 1996	Zboroshenko Nikolay Sergeyevich Moscow	03/08/2019, 5.50 p.m.	05/08/2019, 11.10 a.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017). Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019). Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO) (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018).	Art. 6 (1) - lack of impartiality of tribunal - Absence of a prosecuting party in the administrative щаауrсу proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow city Court on 12/08/2019 (appeal decision); Art. 11 (1) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 19.3 § 1 of CAO for participation on 03/08/2019 in Moscow in manifestation for fair elections to Mosgorduma/ 15 days of administrative detention/ Moscow city Court on 12/08/2019 (appeal decision).	3,900
17.	11935/20 19/02/2020	**Yelizaveta Pavlovna NESTEROVA** 1997	Markin Konstantin Aleksandrovich Velikiy Novgorod	12/06/2019, 3.22 p.m.	12/06/2019, 9.45 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of tribunal - Lack of the prosecuting party in the administrative-offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow City Court on 20/08/2019 (appeal decision);	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
						Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017).	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 6. 1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 20,000/ Moscow City Court on 20/08/2019 (appeal decision).	
18.	12171/20 27/02/2020	**Leonid Viktorovich TRESKUNOV** 1986	Memorial Human Rights Centre Moscow	12/06/2019, 12.20 p.m.	12/06/2019, 10.30 p.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017) , Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of tribunal - Absence of a prosecuting party in the administrative offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow City Court on 30/08/2019 (appeal decision); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 30/08/2019 (appeal decision).	3,900
19.	13104/20 26/02/2020	**Mark Simur GILMAN** 1998	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	12/06/2019, 1.30 p.m.	12/06/2019, 6.30 p.m.	Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of tribunal - Absence of a prosecuting party in the administrative offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow City Court on 26/08/2019 (appeal decision); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 10,000/ Moscow City Court on 26/08/2019 (appeal decision).	3,900

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Start date of unauthorised detention	End date of unauthorised detention	Specific defects	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
20.	14596/20 01/03/2020	**Alisa Andreyevna KOZLYAKOVA** 1997		12/06/2019, 12.50 p.m.	12/06/2019, 7 p.m.	Applicant taken to the police station as an administrative suspect for the purposes of compiling an offence record: no written record of the administrative escort (Art. 27.2 § 3 CAO) (see *Timishev v. Russia* [Committee], no. 47598/08, § 21, 28 November 2017) , Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (see *Korneyeva v. Russia*, no. 72051/17, § 34, 8 October 2019; *Ryabinina and Others v. Russia* [Committee], nos. 50271/06 and 8 other applications, § 35, 2 July 2019).	Art. 6 (1) - lack of impartiality of tribunal - Absence of a prosecuting party in administrative-offence proceedings (see *Karelin v. Russia*, no. 926/08, 20 September 2016) - Moscow City Court on 02/09/2019 (appeal decision); Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – Conviction under article 20.2 § 6.1 of CAO for participation on 12/06/2019 in Moscow in manifestation in support of Ivan Golunov/ administrative fine of RUB 20,000/ Moscow City Court on 02/09/2019 (appeal decision).	3,900

[1] Plus any tax that may be chargeable to the applicants.